

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 15-04

CROCUS INVESTMENTS, LLC
CROCUS, FZE

Complainants,

vs.

MARINE TRANSPORT LOGISTICS, INC.,
ALEKSANDR SOLOVYEV,
ROYAL FINANCE GROUP, INC.

Respondents

**RESPONDENTS' RESPONSE TO
COMPLAINANTS' "STATUS REPORT"
DATED NOVEMBER 1, 2018**

Respondents, by their attorney, Garry Pogil, respectfully submit a response to Complainants' latest "status report" dated November 1, 2018.

As an initial matter, Respondents object to the Complainants filing such unsolicited "status reports" as, upon information and belief, no such reports were requested by the Commission, no such reports are authorized by the Rules of Practice & Procedure, and furthermore, to the extent such report claims to contain new evidence and seeks to influence the decision of Judge Guthridge (hereinafter "ALJ"), which dismissed the complaint with prejudice, the relief requested in such "status report" must be made by way of motion. Otherwise, it is submitted that such "status reports" are an impermissible attempt to re-open the evidentiary record without going through the proper procedure, such as filing a motion to reopen.

As will be seen below, the contents of the "status report" do not change the core predicate findings made by the ALJ in issuing his decision.

DECISION OF ALJ

On page 20 of his decision, ALJ stated: “the plain language of [section 40901’s] licensing requirement does not extend to agents of Ocean Transportation Intermediaries’ *Landstar Express America, Inc. v. Federal Maritime Commission*, 569 F.3d 493, 499 (D.C. Cir. 2009).” Then on page 21, ALJ says: “Because Solovyev made it known that he was acting as an agent for the disclosed NVOCC principal MTL, Solovyev did not hold himself or RFG out to the public to provide transportation and did not assume responsibility for Complainants’ boats. Operating as an NVOCC, MTL issued the bills of lading for the transportation from the United States to Dubai.”

On page 22 the ALJ found: “MTL’s only connection to the Dubai-United States shipment of the Monterey and Chaparral from Dubai to the United States established by the documents is as consignee. APL is the carrier, Middle East Asia Alfa, FZE, is the shipper, and AEC Cargo services LLC is the forwarding agent.” Then on page 25, the ALJ determined: “Even if it were determined that MTL assumed responsibility for the transportation of the Monterey and the Chaparral from Dubai to New Jersey, the APL bill of lading shows that the ultimate destination of the boats was New Jersey and that international transportation ended when the boats were delivered to MTL. *See, e.g., Norfolk Southern R. Co. v. James N. Kirby, Pty Ltd.*, 543 U.S. 14, 23-27 (2004)”.

VESSEL BILLS OF SALE

Vessel Bills of Sale issue raised in the “status report.” What the Complainants omit from their “status report” exhibits is an email that was provided to their counsel from Andrey Tretiakov (the individual who worked on behalf of the Complainants, specifically Mr. Safonov)

on behalf of the Complainants, which requested that Alex Solovyev provide the Vessel Bill of Sale as per samples attached. Enclosed is the copy of such email, which is translated from Russian to English via Rev.com. In any case, it is submitted that it does not change the fact that Mr. Solovyev acted merely as the agent of MTL.

BOAT TRAILER

On the issue of the trailer and title to such. Upon information and belief, the trailer at issue is not a self-propelled unit and no original title is required. Complainants are of a different view and submit an “expert report” which is not verified. The purported expert’s basis for concluding that a boat trailer is a self-propelled vehicle is contained on the last paragraph of page 6 and in a footnote “4” at page 6 of his report: “As can be seen from CBP’s response, the information provided in the webpage, as well as the CBP Pipeline document pertains to self-propelled vehicles, which means that CBP considers boat trailers to fall under the classification of self-propelled vehicles.” It is submitted that this conclusion makes no sense — why would information that pertains generally to self-propelled vehicles would automatically mean that boat trailers fall in that category? The purported expert does not answer this and does not state what makes him an expert on CBP policy. The purported expert’s footnote reads: “I also note that the webpage to which CBP referred me also explains that these export requirements do not apply to watercraft, including jet skis and boats. Therefore, since CBP specifically excludes boats and jet skis, but not boat trailers from their export requirements, there should be no question about CBP’s classification of boat trailers as self-propelled vehicles.” The complainants want this Commission to take seriously this unsubstantiated assertion that, even though, CBP excludes boats from the self-propelled classification, such means that their intent was to include boat-

trailers. It is submitted that the manner in which such report was submitted to the Commission is misleading. It is noteworthy that Complainants' counsel does not attach any of the exhibits (in a copy of exhibits provided to the undersigned) referenced in the purported expert's report.

On the issue of the VIN number, the purported expert says that the number provided as the VIN# "LW95141" cannot be the VIN number. However, the purported expert does not say whether this is perhaps a valid product number or some kind of an identification number where a simple internet search reveals that five-digit numbers are imprinted on some trailers at the center tongue of the trailer. Upon information and belief, model numbers are part of VIN numbers. In any event, it is submitted that such would not impact any predicate findings of the ALJ that resulted in the dismissal of the complaint. Complainants use these arguments in an effort to suggest that the trailer never existed; however, Mr. Safanov, during his deposition on December 3, 2015 as part of the FMC proceeding (Docket No. 15-04) said in the following exchange at page 64:

A... And, also, I asked him to find a car or truck, actually, that would be capable of towing the trailer with this boat.

Q. Do you remember when you asked Mr. Solovyev to find such a trailer?

A. Initially, he offered some trailer that he found in November, but I didn't like that trailer.

Q. Did you eventually agree on a trailer with Mr. Solovyev?

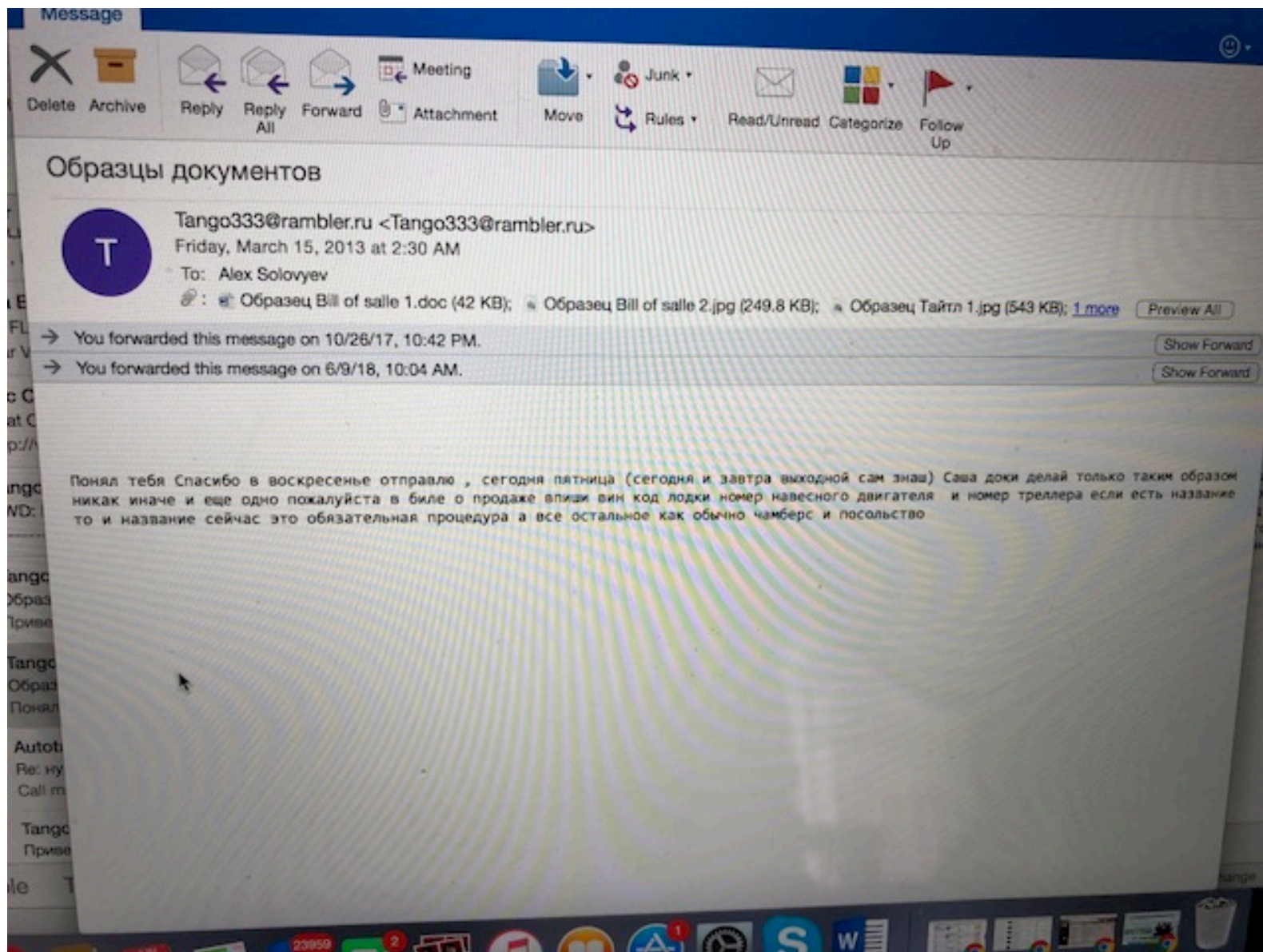
A. Yes. In December, he send me pictures of good or proper trailer that I think is suitable, and I paid for that trailer.

It is submitted that the above excerpt supports the fact that Mr. Solovyev had no reason to make up the existence of a trailer when the Complainant himself rejected the first trailer found by Mr. Solovyev and agreed on another one.

Respectfully Submitted,

November 28, 2018

/s/Garry Pogil, Esq
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Sample documents

Tango333@rambler.ru tango333@rambler.ru

Friday, March 15, 2013 at 2:30 am

TO: Alex Solovyev

Sample Bill of sale 1.doc (42 KB); Sample Bill of sale.jpg (249.8 KB); Sample Title 1.jpg (543 KB) 1 more Preview all

You forwarded this message on 10/26/17, 10:42 pm

You forwarded this message on 6/9/18, 10:04 am

I understood. Thank you. I shall send it on Sunday. Today is Friday (today and tomorrow are days off, you know) Sasha, do the documents this way only and no other way and one more thing, please, in the Bill of sale insert Vin number of a strap—on engine of a boat and the number of a trailer. If there are names, include them as well. This is a mandatory procedure. The rest is as usual: chambers and embassy.

Federal Maritime Commission

Docket No. 15-04:

Certification

The electronic copy of the within Respondents' Response are true and correct copies of the paper original, except that the attached exhibit was received by the undersigned as copies. Furthermore, the paper signed original and five copies are being simultaneously filed with the Secretary of the Commission via first class United States Postal Service.

Respectfully Submitted,

November 27, 2018

/s/ Garry Pogil, Esq

Federal Maritime Commission

Docket No. 15-04:

Certification of Service

I, Garry Pogil, an attorney duly admitted to practice in the States of New York and New Jersey affirm, that on November 27, 2018, I served, via First Class United States Postal Service and electronic mail the true copies of the Respondents' Response to Complainants' "Status Report" on the following:

Marcus A. Nussbaum, Esq: P.O. Box 245599, Brooklyn, NY 11224:
marcus.nussbaum@gmail.com

November 27, 2018

Respectfully Submitted,

/s/ Garry Pogil, Esq